

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emily Hebert	Team: Squad #13	CCRB Case #: 201901073	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 12/01/2018 12:00 AM, Sunday, 12/02/2018 11:00 PM	Location of Incident: Bay Street and Clifton Avenue	18 Mo. SOL 1/17/2021	Precinct: 120
Date/Time CV Reported Tue, 02/05/2019 1:53 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 02/05/2019 1:53 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			PBSI SU
2. POM Dustin Levi	26208	943480	PBSI SU
3. POM Russell Bordina	12974	948685	PBSI SU

Officer(s)	Allegation	Investigator Recommendation
A . POM Dustin Levi	Abuse: Police Officer Dustin Levi stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Alleged Victim Unavailable
B . POM Russell Bordina	Abuse: Police Officer Russell Bordina stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Alleged Victim Unavailable
C . An officer	Abuse: An officer questioned § 87(2)(b)	C . Officer(s) Unidentified
D . POM Dustin Levi	Abuse: Police Officer Dustin Levi refused to provide his name to § 87(2)(b)	D . Unsubstantiated
E . POM Russell Bordina	Abuse: Police Officer Russell Bordina refused to provide his name to § 87(2)(b)	E . Unsubstantiated
F . POM Dustin Levi	Abuse: Police Officer Dustin Levi refused to provide his shield number to § 87(2)(b)	F . Unsubstantiated
G . POM Russell Bordina	Abuse: Police Officer Russell Bordina refused to provide his shield number to § 87(2)(b)	G . Unsubstantiated
H . POM Dustin Levi	Abuse: Police Officer Dustin Levi interfered with § 87(2)(b)'s use of a recording device.	H . Unsubstantiated
I . POM Russell Bordina	Abuse: Police Officer Russell Bordina interfered with § 87(2)(b)'s use of a recording device.	I . Unsubstantiated
J . POM Dustin Levi	Abuse: Police Officer Dustin Levi refused to provide his name to § 87(2)(b)	J . Unsubstantiated
K . POM Russell Bordina	Abuse: Police Officer Russell Bordina refused to provide his name to § 87(2)(b)	K . Unsubstantiated
L . POM Dustin Levi	Abuse: Police Officer Dustin Levi refused to provide his shield number to § 87(2)(b)	L . Unsubstantiated
M . POM Russell Bordina	Abuse: Police Officer Russell Bordina refused to provide his shield number to § 87(2)(b)	M . Unsubstantiated
N . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	N . Officer(s) Unidentified
O . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	O . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
P . An officer	Discourtesy: An officer acted discourteously toward § 87(2)(b)	P . Officer(s) Unidentified

Case Summary

On February 5, 2019, § 87(2)(b) reported the following complaint in-person, at the CCRB, on behalf of himself, his brother § 87(2)(b) and his cousin, § 87(2)(b).

On December 2, 2018, at approximately 11:00 p.m., at the intersection of Bay Street and Clifton Avenue in Staten Island, Police Officer Dustin Levi and Police Officer Russell Bordina of the Patrol Borough Staten Island Auto Larceny Unit stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants (**Allegations A and B – Abuse of Authority, Alleged Victim Unavailable**). An officer allegedly sought consent to search his vehicle (**Allegation C – Abuse of Authority, Officer Unidentified**). PO Levi and PO Bordina allegedly refused to provide their names and shield numbers to § 87(2)(b) (**Allegations D - G – Abuse of Authority, Unsubstantiated**). PO Levi and PO Bordina allegedly interfered with § 87(2)(b)'s use of a recording device, intentionally obstructing his camera lens to prevent him from recording their shields (**Allegations H – M – Abuse of Authority, Unsubstantiated**). One officer allegedly spoke discourteously to § 87(2)(b) and the other officer allegedly spoke discourteously to § 87(2)(b) (**Allegations N and O – Discourtesy, Officer Unidentified**). An officer allegedly threw § 87(2)(b)'s license and registration at § 87(2)(b) (**Allegation P – Discourtesy, Officer Unidentified**).

No summons or arrest resulted from this incident.

There is no video evidence in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Dustin Levi stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Police Officer Russell Bordina stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Levi and PO Bordina stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) and § 87(2)(b) were unavailable to the investigation (see IAs for contact attempts).

§ 87(2)(b) said he received a call from § 87(2)(b) who was with § 87(2)(b)'s cousin, § 87(2)(b). § 87(2)(b) said he had been interacting with officers in the parking lot of Convenient Food Mart, located at 255 Hylan Boulevard in Staten Island. § 87(2)(b) who was in Corona Queens at the time, stated that he would head to where § 87(2)(b) was. Approximately 60 to 90 minutes later, § 87(2)(b) arrived. He entered the parking lot in his tow truck, conversed with § 87(2)(b) and two plainclothed officers about how the officers were “harassing” § 87(2)(b) and they all got into their vehicles and drove out of the parking lot. At the intersection of Bay Street and Clifton Avenue, the same two plainclothed officers pulled § 87(2)(b)'s vehicle over. § 87(2)(b) pulled over in front of § 87(2)(b)'s vehicle in the same lane.

PO Levi stated that, as he was driving a police vehicle, he personally saw an “older” Honda with “fancy” rims driving on Hylan Boulevard approximately four or five cars ahead of him. In addition to personally observing the vehicle fail to signal a right turn as it drove toward

Convenient Food Mart, PO Levi observed that the vehicle fit a reported pattern of stolen Honda vehicles that had been manufactured in the early 1990s to mid-2000s and fitted with high-end rims. There were no other reasons why PO Levi planned to stop the vehicle. PO Levi reached a red traffic light that prevented him from turning into the deli parking lot before the driver had parked and exited his vehicle in the Convenient Food Mart parking lot. As the driver exited the vehicle, PO Levi recognized him as § 87(2)(b) for the first time during this incident. PO Levi knew § 87(2)(b) to be a member of a motorcycle gang, a Grand Larceny Auto recidivist, a burglary recidivist, and a recidivist for removing parts from vehicles. In total, PO Levi had interacted with § 87(2)(b) on more than 10 prior occasions. PO Levi knew § 87(2)(b) to be “easily agitated,” with a tendency to “act irate” and claim his innocence and unnecessarily “create a scene” when officers stop him. Based on his concern that § 87(2)(b) might “cause a scene,” PO Levi told PO Bordina they should wait for § 87(2)(b) outside the deli because entering the deli to stop him was not worth causing § 87(2)(b) to become “irate.”

PO Bordina stated that he personally observed § 87(2)(b)'s vehicle fail to signal as it turned left onto Hylan Boulevard, and he and PO Levi discussed the fact that they planned to stop this vehicle in regard to this traffic violation. There was no other reason they planned to stop this vehicle, and they did not discuss anything else about this vehicle. The vehicle did not fit the description of anything PO Bordina and PO Levi were looking for, and PO Bordina did not recall whether PO Levi ever stated that it did. As they began following the vehicle, the driver appeared to “make” their unmarked police vehicle and quickly turned into the parking lot of Convenience Food Mart before they could conduct the vehicle stop. As soon as the driver exited his vehicle, PO Bordina recognized § 87(2)(b) as a Grand Larceny Auto recidivist whom PO Levi had arrested previously a few times. PO Bordina had not suspected the driver to be § 87(2)(b) prior to him exiting his vehicle. Immediately after exiting his vehicle, § 87(2)(b) entered the deli. PO Bordina did not believe it was safe to stop § 87(2)(b) inside the deli because it might result in § 87(2)(b) fighting them, and he believed it was better to stop any person in a vehicle so that the person is “secluded” and unable to run away. PO Bordina stated that they ultimately did not issue a summons to § 87(2)(b) for the traffic violation because that is not usually what they do. Instead, during vehicle stops, they generally focus on checking the validity of car insurance and the legitimacy of VIN numbers.

PO Levi and PO Bordina both stated that, after § 87(2)(b) drove out of the Convenient Food Mart parking lot, they stopped § 87(2)(b)'s vehicle for failing to signal a turn before parking in the Convenient Food Mart parking lot, although PO Levi described this as a right turn while PO Bordina stated it was a left turn. § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegations A and B** be closed as **Alleged Victim Unavailable**.

Allegation (C) Abuse of Authority: An officer questioned § 87(2)(b)

§ 87(2)(b) stated that he was the owner of the vehicle that § 87(2)(b) was driving. One of the officers § 87(2)(b) could not recall whom) ordered § 87(2)(b) to step out of his vehicle. One officer, who § 87(2)(b) described as an approximately 5'11" to 6'0" tall white male in his late 20s

to early 30s with dark blond hair, stated that he wanted to search the vehicle. § 87(2)(b) asked if the officers had a warrant to search the vehicle and pointed out that the vehicle's owner, § 87(2)(b) was nearby so the officers should ask him for authorization. Unprompted, § 87(2)(b) told the officers not to search the vehicle because he did not give them permission to do so. The officers did not say anything else about searching § 87(2)(b)'s vehicle, and they never actually searched § 87(2)(b)'s vehicle. § 87(2)(b) described the second officer as an approximately 6'0" tall white male in his 30s who was bald and smaller than the blond officer.

PO Levi is a § 87(2)(b) white male with blond hair who was § 87(2)(b) old at the time of this incident. PO Bordina is a § 87(2)(b) white male with brown hair who was § 87(2)(b) old at the time of this incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Both PO Levi and PO Bordina did not recall discussing searching § 87(2)(b)'s vehicle. During his CCRB interview, PO Levi first said that he told § 87(2)(b) "Is there something in the car you don't want us to know about?" However, later during his CCRB interview, PO Levi stated that this question was just something he was thinking about during the incident and that he did not ask § 87(2)(b) any questions other than requests for his documents.

As per People v. Battaglia, 86 N.Y.2d 755 (1995) (Board Review 02), beyond just observing a Vehicle and Traffic Law observation, officers must have a founded suspicion of criminality in order to even ask the occupants of a vehicle for consent to search it.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation C** be closed as **Officer Unidentified**.

Allegation (D) Abuse of Authority: Police Officer Dustin Levi refused to provide his name to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Russell Bordina refused to provide his name to § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Dustin Levi refused to provide his shield number to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Russell Bordina refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) stated that he asked both plainclothed officers for their names and shield numbers and the name of their captain so that he could make a report. Both officers replied, "No, we can't give it to you," and then both zipped up their sweaters to cover the shields that were hanging around

their necks.

PO Levi and PO Bordina both denied that § 87(2)(b) requested their names and shield numbers, and denied intentionally hiding the shields around their necks from being visible.

§ 87(2)(g)

It is therefore recommended that **Allegations D, E, F, and G** be **Unsubstantiated**.

Allegation (H) Abuse of Authority: Police Officer Dustin Levi interfered with § 87(2)(b)'s use of a recording device.

Allegation (I) Abuse of Authority: Police Officer Russell Bordina interfered with § 87(2)(b)'s use of a recording device.

Allegation (J) Abuse of Authority: Police Officer Dustin Levi refused to provide his name to § 87(2)(b)

Allegation (K) Abuse of Authority: Police Officer Russell Bordina refused to provide his name to § 87(2)(b)

Allegation (L) Abuse of Authority: Police Officer Dustin Levi refused to provide his shield number to § 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer Russell Bordina refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) stated that, as § 87(2)(b) attempted to record a video of them, PO Levi and PO Bordina both repeatedly stated, “Get the camera out of my face.” § 87(2)(b) asked both PO Levi and PO Bordina for their shield numbers and stated he did not have the camera in their face and was trying to capture the shields they were wearing. PO Levi and PO Bordina both shone their flashlights into § 87(2)(b)'s camera lens, which § 87(2)(b) believed was done intentionally to prevent their shields and faces from being visible in § 87(2)(b)'s video. The video of this incident was recorded on § 87(2)(b)'s cell phone and he subsequently sent the video to § 87(2)(b) and § 87(2)(b) were the only two individuals who had copies of the video. § 87(2)(b) was unable to send the video to the CCRB because his phone was in the NYPD's possession after he was arrested on December 20, 2018. § 87(2)(b) was unavailable to the investigation and, although § 87(2)(b) stated he would tell § 87(2)(b) to send the video to the CCRB, the CCRB never obtained the video.

PO Levi and PO Bordina both denied that § 87(2)(b) asked for their names and shield numbers and denied that they ever intentionally shone their lights into § 87(2)(b)'s camera lens to prevent their shields from being visible.

§ 87(2)(g)

It is therefore recommended that **Allegations H, I, J, K, L, and M** be **Unsubstantiated**.

Allegation (N) Discourtesy – Word: An officer spoke discourteously to § 87(2)(b)

Allegation (O) Discourtesy – Word: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that, as he approached § 87(2)(b)'s vehicle, the blond officer said to him, "Do me a favor. Don't fucking get near us. Stay the fuck over there," and told § 87(2)(b) to stay 10 feet away. § 87(2)(b) asked the officers what was going on, and the blond officer said, "Don't fucking worry about it. § 87(2)(b) knows why we pulled him over." § 87(2)(b) also stated that § 87(2)(b) told the officers that he had a badge belonging to his sister who works at the White House and the bald officer said, "That shit ain't even gonna help."

Both PO Levi and PO Bordina acknowledged telling § 87(2)(b) to go back inside his tow truck, but they both denied saying anything to the effect of, "Don't fucking get near us," "Stay the fuck over there," "Don't fucking worry about it," and, "That shit ain't even gonna help." PO Levi and PO Bordina denied using any profanity or discussing a White House badge presented by a civilian.

§ 87(2)(g)
It is therefore recommended that **Allegations N and O** be closed as **Officer Unidentified**.

Allegation (P) Discourtesy – Action: An officer acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated that the blond officer asked § 87(2)(b) for his license and vehicle registration, which he provided. Later during the incident, without ever trying to hand § 87(2)(b) his license and registration back, the blond officer threw § 87(2)(b)'s license and registration (both at the same time) through the vehicle window and at § 87(2)(b)'s face, causing both items to strike § 87(2)(b) in the face.

Both PO Bordina and PO Levi did not acknowledge that he or his partner ever threw § 87(2)(b)'s license and registration at § 87(2)(b)'s face.

§ 87(2)(g)
It is therefore recommended that **Allegation P** be closed as **Officer Unidentified**.

Civilian and Officer CCRB Histories

- This is the third CCRB complaint to which § 87(2)(b) has been a party, the second CCRB complaint to which § 87(2)(b) has been a party, and the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 03).

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

- § 87(2)(b) [REDACTED]
- This is the second CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (Board Review 03).
 - § 87(2)(b) [REDACTED]
- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (Board Review 03).
- Police Officer Bordina has been a member of service for eight years, and has been a subject in seven allegations in four prior CCRB complaints, none of which were substantiated. § 87(2)(g) [REDACTED]
- Police Officer Levi has been a member of service for 12 years, and has been a subject in seven allegations in five prior CCRB complaints, none of which were substantiated. § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
 - As of June 3, 2019, neither § 87(2)(b) [REDACTED] nor § 87(2)(b) [REDACTED] has filed a Notice of Claim with the Comptroller's Office of the City of New York regarding this incident (Board Review 04).
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- [REDACTED]
- [REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date